**GOVERNMENT OF ANDHRA PRADESH**
**ABSTRACT**

ANDHRA PRADESH INFORMATION COMMISSION - Sri C.D. Arha, IAS., (Retd.) appointed as State Chief Information Commissioner - Salary, Pay and Allowances payable and terms and conditions - During his term of the Office as State Chief Information Commissioner – Orders - Issued.

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**GENERAL ADMINISTRATION (I&PR.II) DEPARTMENT**

**G.O.Ms.No.154** **Dated 28.03.2006**

**Read the following**:

1. G.O.Rt.No.4303, G.A.(Spl.B) Department, dated 05.07.2005.
2. G.O.Ms.No. 504, G.A.(I&PR-II) Department, dated 12.11.2005.
3. G.O.Ms.No. 505, G.A.I&PR-II) Department, dated 12.11.2005.

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**O R D E R:**

In the G.O. 3rd read above under Section 15 of the RTI Act 2005, Sri C.D. Arha, IAS (Retd.) is appointed as State Chief Information Commissioner (SCIC) in Andhra Pradesh Information Commission constituted in the G.O. 2nd read above and His Excellency the Governor of Andhra Pradesh has administered oath of office on 15.11.2005 and he has started functioning from that date.

2. According to Section 16 (5) (a) of Right to Information Act, 2005, the salaries and allowances payable to and other terms and conditions of service of the State Chief Information Commissioner shall be the same as that of an Election Commissioner of India. The Ministry of Personnel, Public Grievances & Pensions, Department of Personnel & Training vide their file No.1/2/2005-IR, dated 26th December, 2005 has indicated that the terms and conditions in respect of the Chief Election Commissioner and the Election Commissioners are the same as applicable to the Supreme Court Judges and further clarified that whatever the salaries and allowances payable to and other terms and conditions of service applied to the Chief Election Commissioner and Election Commissioners are *mutatis-mutandis* applicable to the Chief Information Commissioner and Information Commissioners which are issued in Chief Election Commissioner and other Commissioners (conditions of service ) Act 1991 read with the Amendment Act 1993 and 2005 and the Supreme Court Judges (salaries and conditions of Service) Act,1958.

3. In pursuance to the above, the terms and conditions of service of the State Chief Information Commissioner are as follows:-

(P.T.O)

**Term:** The term of the State Chief Information Commissioner shall be 5 years from the date on which he enters upon his office or till he has attained the age of 65 years.

**Status:** The status of the State Chief Information Commissioner shall be the same as that of an Election Commissioner of India which is equivalent to Judge of Supreme Court of India.

**Pay:** He shall receive a sum of Rs.30,000/- per month fixed. An amount of Rs.19,500/- service pension sanction to him in the G.O. first read above will be deducted. He is also eligible for Dearness Pay and Dearness Allowance as admissible to the Election Commissioner of India on monthly remuneration indicated above i.e Rs.30,000/-. He shall not be eligible for Dearness Allowance on service pension during his tenure.

**Leave:** The State Chief Information Commissioner may be granted leave in accordance with such rules as are for the time being applicable to the member of Indian Administrative Service.

He shall be eligible for surrender of EL for the purpose of encashment on par with All India Service Officers.

He shall be eligible for encashment of EL at his credit at the time of demitting office as applicable to the All India Service Officers.

The power to grant or refuse leave to the State Chief Information Commissioner and to revoke or curtail leave granted to him shall vest in the Governor of Andhra Pradesh.

**Traveling Allowance/Daily Allowance**: The State Chief Information Commissioner while on tour or on transfer (including the journey undertaken to join as Commissioner or on the expiry of his term with the Commission to proceed to his home town) shall be entitled to the Traveling Allowance, Daily Allowance, transportation of personal effects and other similar matters at the same scales and at the same rates as are applicable to the Election Commissioner of India/Supreme Court Judge.

**Leave Travel Concession**: The State Chief Information Commissioner shall be entitled to traveling allowance/Leave Travel Concession as applicable to the Election Commissioner of India/Supreme Court Judge.

**Accommodation:** He is entitled without payment of rent with use of furnished residence as admissible to the Election Commissioner, Government of India throughout his term of office and for a period of one month immediately thereafter and no charge shall fall on him in respect of

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maintenance of such residence on par with Election Commissioner of India or he is eligible for payment of an allowance of Rs.16,000/- (Rupees Sixteen thousand only) towards HRA lieu of rent free accommodation.

**Medical Facilities**: The State Chief Information Commissioner and the members of his family shall be entitled to such facilities for medical treatment and for accommodation in hospitals as prescribed for the Election Commissioner of India from time to time.

**Conveyance facilities**: He is entitled to a Staff Car and 200 liters of fuel per month or actual consumption of fuel whichever is less. In case he is using his own vehicle he shall be paid an amount of Rs.18,000/- per month in relaxation of the orders issued in Circular Memo No.30692/1116/A2/W&M/2002, Fin(W&M) Dept., dated 22.04.2003.

**Sumptuary Allowance**: A monthly sumptuary allowance as admissible to the Election Commissioner shall be admissible to the State Chief Information Commissioner.

**Provident Fund:** Since he was a member of the Indian Administrative Service and held pensionable civil post under A.P State, he shall continue to subscribe to the General Provident Fund to which he was subscribing before his retirement and thereafter his appointment as the State Chief Information Commissioner after his retirement.

**Telephones**: He shall be provided with two telephones one at office and another at the residence with STD facility. A cell phone with National Roaming facility (Rupees five thousand package) from the date of assumption.

**Administration and other residuary matter**: Administrative matters relating to terms and conditions of service of State Chief Information Commissioner with respect to which no express provision has been made shall be as applicable mutatis-mutandis to those that are applicable to the Election Commissioner of India/Judge of the Supreme Court.

4. This order is issued with the concurrence of Finance(Expr.GAD.I) vide their U.O. No.7768-A/139/A2/Expr.GAD.I/2006, dated 21.03.2006.

**(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)**

**K.V. RAMANACHARY,**
**EX.OFFICIO SECY. TO GOVT.(I&PR)**